Fort Bend County District Court

Cause No. 2025-CV-0043

Corey Petty, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	2-12-25
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the material allegations and requests that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

As affirmative defenses, Defendant asserts the following. First, Plaintiff's own negligence proximately caused or contributed to the occurrence, and under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, or barred if that percentage exceeds fifty percent. Second, the occurrence was caused by the acts or omissions of a third party or parties over whom Defendant had no control, and Defendant requests that the trier of fact assign responsibility to those persons as provided by Section 33.004. Third, Plaintiff failed to exercise ordinary care to mitigate damages, including by failing to follow reasonable medical advice, and any recovery must be reduced accordingly.

Defendant reserves the right to amend this answer as discovery proceeds.